

proposed order.

18. 9:00 AM CASE NUMBER: C25-01414
CASE NAME: ANTHONY PROVENCIO VS. ASPEN SURGERY CENTER, LLC,
*HEARING ON MOTION IN RE: TO ABATE OR, IN THE ALTERNATIVE, MOTION TO STAY
PROCEEDINGS
FILED BY: ASPEN SURGERY CENTER, LLC,
TENTATIVE RULING:

Before the Court is Defendant Aspen Surgery Center, LLC (“Defendant”)’s motion to abate the class action complaint or, in the alternative, motion to stay the proceedings on the grounds that two earlier-filed class actions are currently pending that encompass the claims set forth in this case (and that exclusive concurrent jurisdiction applies). Plaintiff Anthony Provencio and Plaintiff Darlene Yvonne Enersen (collectively, “Plaintiffs”) oppose the motion on several grounds.

As a threshold issue, Courts have held that the rule of exclusive concurrent jurisdiction is subject to waiver and should be raised by demurrer where the issue appears on the face of the complaint and by answer where factual issues must be resolved, followed by a motion to abate or for summary judgment. (*People ex rel. Garamendi v. American Autoplan, Inc.* (1993) 20 Cal.App.4th 760, 771; see *BBBB Bonding Corp. v. Caldwell* (2021) 73 Cal.App.5th 349, 374.) Defendant did not raise the issue by demurrer or answer. The Court declines to find waiver, however, because Plaintiffs have not argued waiver. Further, as *Garamendi* observed, “In some reported decisions, it is not clear whether motions to abate or stay without answer or demurrer may have been brought.” (*Garamendi*, at p. 771, fn. 9 [citing *Figgs v. Superior Court* (1962) 204 Cal.App.2d 231; *Gorman v. Superior Court* (1937) 23 Cal.App.2d 173]; see also *Childs v. Eltinge* (1973) 29 Cal.App.3d 843, 848 [rule raised by motion to quash or dismiss].)

For the following reasons, the motion is **granted**.

Request for Judicial Notice

Defendant’s unopposed request for judicial notice is **granted**.

Brief Factual and Procedural Background

Latrice Johnson filed a Class Action Complaint in Contra Costa County Superior Court, Case No. C25-00480, on February 13, 2025 alleging wage and hour violations against Sequoia Surgical Pavilion LLC, NSH California, LLC, NSH Management of California, LLC, National Surgical Hospitals, LLC, Sequoia Surgical Center, L.P., Sequoia Surgical Center Holding Company, LLC, and Surgery Partners, Inc. (“*Johnson*”). She filed a First Amended Class Action Complaint on April 28, 2025 alleging an additional cause of action pursuant to California’s Private Attorneys General Act (“PAGA”).

The plaintiff in *Johnson* seeks to represent “All persons who worked for Defendants as non-exempt, hourly paid employees in California, at any time from June 12, 2023, until the date of trial (“Class”).” (Request for Judicial Notice (“RJN”) Ex. 2, ¶158.)

Lacen Patton filed a class action complaint against defendants SP Management Services, Inc., Surgery

Partners, Inc., Dave Doherty, Jennifer Baldock, and Eric Evans ("*Patton*") on March 18, 2025 in Santa Barbara Superior Court alleging various wage and hour claims. On March 13, 2025, Patton submitted a Notice to the Labor Workforce Agency ("LWDA") seeking PAGA penalties, but has not yet filed an amended complaint alleging PAGA.

The plaintiff in *Patton* seeks to represent a class of "all current and former non-exempt employees of Defendants within the State of California at any time commencing four (4) years preceding the filing of Plaintiff's complaint up until the time that notice of the class action is provided to the class (collectively referred to as "Class Members")." (RJN Ex. 4, ¶138.)

Plaintiffs filed this class action on May 20, 2025, on behalf of themselves and all other non-exempt employees of Defendant in California during the time period beginning May 20, 2021, and ending on a date designated by the Court. Plaintiff asserts claims for (1) Violations of the Unfair Competition Law, (2) Failure to Pay Minimum Wages, (3) Failure to Pay Overtime Wages, (4) Failure to Provide Required Meal Periods, (5) Failure to Provide Required Rest Periods, (6) Failure to Provide Accurate Itemized Wage Statements, (7) Failure to Reimburse Employees, and (8) Failure to Pay Sick Pay Wages.

In this action, Plaintiffs seek to represent a class of "all individuals who are or previously were employed by DEFENDANT in California, including any employees staffed with DEFENDANT by a third party, and classified as non-exempt employees (the "CALIFORNIA CLASS") at any time during the period beginning four (4) years prior to the filing of this Complaint and ending on the date as determined by the Court (the "CALIFORNIA CLASS PERIOD")." (Complaint at ¶ 26.)

Defendants filed an answer in this case on September 5, 2025.

Plaintiffs filed a notice of submission of petition for coordination on March 13, 2026. It concerns the following actions:

1. *Johnson v. Sequoia Surgical Pavilion LLC et al.*, Case No. C25-00480, pending in Contra Costa Superior Court ("Johnson");
2. *Patton v. SP Management Services, Inc. et al.*, Case No. 25CV01659, pending in Santa Barbara Superior Court ("Patton");
3. *Provencio et al. v. Aspen Surgery Center, LLC*, Class Action, Case No. C25-01414, pending in Contra Costa Superior Court ("Provencio Class");
4. *Provencio et al. v. Aspen Surgery Center, LLC*, PAGA Action, Case No. C25-02316, pending in Contra Costa Superior Court ("Provencio PAGA"); and
5. *Williams v. SP Management Services, Inc. et al.*, Class Action, Case No. C25-02024, pending in Contra Costa Superior Court ("Williams").

Analysis

Here, Defendant moves for abatement on the grounds that Plaintiffs' Complaint alleges the same causes of action and involves the same parties as *Johnson* and *Patton*.

For plea in abatement to apply, an identical cause of action or primary right must be involved in both suits so that a judgment in the first action would constitute a bar on the claim in the present action

under the doctrine of res judicata/claim preclusion. (*Bush v. Superior Court* (1992) 10 Cal.App.4th 1374, 1384.) “To determine whether two proceedings involve identical causes of action for purposes of claim preclusion, California courts have consistently applied the ‘primary rights’ theory. [Citation.] Under this theory, a cause of action arises out of an antecedent primary right and corresponding duty and the... breach of such primary right and duty by the person on whom the duty rests.” (*Boeken v. Philip Morris USA, Inc.* (2010) 48 Cal.4th 788, 797-798.) “[F]or purposes of applying the doctrine of res judicata, the phrase ‘cause of action’ has a more precise meaning: The cause of action is the right to obtain redress for a harm suffered, regardless of the specific remedy sought or the legal theory (common law or statutory) advanced.” (*Id.* at p. 798.)

Similar to, but distinct from, abatement is the rule of “exclusive concurrent jurisdiction” applies: i.e., the first court to assert subject matter jurisdiction assumes it to the exclusion of all others, and has the power to enjoin the later proceedings in other courts. (See *Franklin & Franklin v. 7-Eleven Owners for Fair Franchising* (2000) 85 Cal. App. 4th 1168, 1175; *Levine v. Smith* (2006) 145 Cal. App. 4th 1131, 1135; *County of Siskiyou v. Sup.Ct. (Environmental Law Found.)* (2013) 217 Cal App. 4th 83, 89.)

The doctrine of “exclusive concurrent jurisdiction” provides that when two or more courts have subject matter jurisdiction over a dispute, the court that first asserts jurisdiction assumes it to the exclusion of the others. (*Franklin & Franklin v. 7-Eleven Owners for Fair Franchising* (2000) 85 Cal.App.4th 1168, 1175; see also *Levine v. Smith* (2006) 145 Cal.App.4th 1131, 1135 [“Under the doctrine of priority of jurisdiction, the first superior court to assume and exercise jurisdiction in the case acquires exclusive jurisdiction until the matter is disposed of.”].) The rule is “a judicial rule of priority or preference and is not jurisdictional in the traditional sense of the word,” in that it “does not divest a court, which otherwise has jurisdiction of an action, of jurisdiction.” (*Garamendi, supra*, 20 Cal.App.4th at pp. 764–765.) The purpose of this rule “is to avoid unseemly conflict between courts that might arise if they were free to make contradictory decisions or awards at the same time or relating to the same controversy” and “to protect litigants from the expense and harassment of multiple litigation.” (*Scott v. Industrial Acci. Com.* (1956) 46 Cal.2d 76, 81–82.) Because it is a policy rule, the application of the rule in a given case depends upon the balancing of countervailing policies. (*Childs v. Eltinge* (1973) 29 Cal.App.3d 843, 854.)

“Unlike the statutory plea of abatement, the rule of exclusive concurrent jurisdiction does not require absolute identity of parties, causes of action or remedies sought in the initial and subsequent actions.” (*Plant Insulation Co. v. Fibreboard Corp.* (1990) 224 Cal.App.3d 781, 788.)

The Court finds the recent decision in *Shaw v. Superior Court* (2022) 78 Cal.App.5th 245 instructive. *Shaw* involved duplicative PAGA claims filed against Beverages & More!, Inc. (BevMo) in Los Angeles County and Contra Costa County. BevMo brought a motion to stay the Contra Costa County action under the doctrine of exclusive concurrent jurisdiction and under the court’s inherent authority. (*Id.* at p. 252.) The *Shaw* court affirmed the trial court’s decision to stay the matter under the pending concurrent jurisdiction doctrine. (*Id.* at p. 263.) In so doing, the court noted, “[w]e do not believe the absence of an express statutory prohibition on the filing of duplicative PAGA representative actions manifests the requisite unequivocal intent to repeal the well-established exclusive concurrent jurisdiction rule, especially considering the rule’s important policies of avoiding conflicting decisions and preventing vexatious litigation and multiplicity of suits.” (*Id.* at p. 259.)

Here, the *Johnson* and *Patton* actions involve the same causes of action as the instant case, as detailed in the below table:

Causes of Action:	<i>Johnson</i>	<i>Patton</i>	<i>Provencio</i>
Violation of California Labor Code §§ 510 and 1198 (Unpaid Overtime)	X	X	X
Violation of California Labor Code §§ 1182.12, 1182.14, 1194, 1197, 1197.1, and 1198 (Unpaid Minimum Wages)	X	X	X
Violation of California Labor Code §§ 226.7, 512(a), 516, and 1198 (Failure to Provide Meal Periods)	X	X	X
Violation of California Labor Code §§ 226.7, 516, and 1198 (Failure to Authorize and Permit Rest Periods)	X	X	X
Violation of California Labor Code §§ 226(a), 1174(d), and 1198 (Non-Compliant Wage Statements and Failure to Maintain Payroll Records)	X	X	X
Violation of California Labor Code §§ 201 and 202 (Wages Not Timely Paid Upon Termination)	X	X	
Violation of California Labor Code § 204 (Failure to Timely Pay Wages During Employment)	X		
Violation of Labor Code § 1198 and California Code of Regulations, Title 8, Section 11040 Subdivision 5(A) (Failure to Provide Reporting Time Pay)	X		
Violation of California Labor Code § 2802 (Unreimbursed Business Expenses)	X	X	X
Violation of California Business & Professions Code §§ 17200, et seq. (Unlawful Business Practices and Unfair Practices)	X	X	X
Violation of Labor Code § 226(c)		X	
Violation of Labor Code § 1198.5		X	
Failure to Pay Sick Pay in Violation of Labor Code §246		X	X

Defendants argue that both *Johnson* and *Patton* matters name Surgery Partners, Inc. (“Surgery Partners”) as a defendant and that Surgery Partners is the parent company of its subsidiaries and is affiliated with several entities nationwide providing surgical and ancillary services which include multi-specialty physician practices and anesthesia services. (Declaration of Stefanie Trautvetter (“Trautvetter Decl.”) at ¶ 3.) Specifically, Defendants note that Surgery Partners is the parent company and affiliated with all of the various named entities identified in *Johnson*, *Patton* and *Provencio* actions. (*Id.* at ¶¶ 3-15.) As a consequence,

Plaintiffs argue in opposition that the parties are not the same; however, as noted by Defendants in their moving papers, while Aspen is not a named defendant in the *Johnson* and *Patton* actions, Aspen is one of several subsidiaries of Surgery Partners, Inc., which is a named defendant in both *Johnson* and *Patton*. (Trautvetter Decl., ¶¶ 6, 12.) Furthermore, the putative class Plaintiffs seek to represent are the same in each of the related actions—they cover the same time period, claims, and group of employees. (See, e.g., *Alch v. Superior Court* (2004) 122 Cal.App.4th 339, 363 fn. 8 [“where the prospective class is the same, the identity of the named plaintiffs does not affect the question whether a FEHA class action in state court is, or is not, barred by section 12965(b).”].)

Plaintiffs’ remaining arguments are largely directed at the substantive benefits of coordination but do not squarely address the issue of exclusive concurrent jurisdiction.

Because the Court finds that the conditions for application of concurrent exclusive jurisdiction exist here, an order staying this action is mandatory. (See *Plant Insulation Co.*, *supra*, 224 Cal.App.3d at 787 [“An order of abatement issues as a matter of right not as a matter of discretion where the conditions for its issuance exist.”].)

Conclusion

The motion is **granted** and this proceeding is stayed until one of the following occurs:

- a. The *Johnson* and *Patton* actions are finally resolved by judgment, settlement, or otherwise;
- b. The coordination motion judge, or if Plaintiffs’ petition is granted, the coordination trial judge, issues an order that the stay is lifted in whole or in part; or
- c. The Court enters a further order upon the noticed motion of either side.

19. 9:00 AM CASE NUMBER: C25-01967
CASE NAME: PARAS GIRDHAR VS. HYUNDAI MOTOR AMERICA
***HEARING ON MOTION IN RE: ATTORNEY’S FEES, COSTS, AND EXPENSES**
FILED BY: GIRDHAR, PARAS
TENTATIVE RULING:

Summary

Plaintiff Paras Girdhar’s (“Plaintiff”) Motion for Attorney’s fees and costs against Defendant Hyundai North America (“Defendant” or “Hyundai”) is **granted** as set forth herein.